

END USER LICENSE AGREEMENT (EULA)

Last Updated: 06/10/2024

This End User License Agreement ("Agreement") is a binding legal agreement between you ("User") and AI Human Behaviour Understanding and Generation Group (AI-HBUG), University of Exeter ("Licensor"). By accessing or utilizing the Multi-modal **Multiple Appropriate Reaction in Social Dyads (MARS) Dataset** ("Database"), you acknowledge and agree to be bound by the terms and conditions of this Agreement. If you do not agree to these terms, you must not access or use the Database.

1. License Grant

1.1 Subject to the terms and conditions of this Agreement, Licensor hereby grants User a revocable, non-exclusive, non-transferable, limited license to access and use the Database solely for personal or internal business purposes.

2. License Restrictions

2.1 User agrees to the following restrictions:

- a) The Database and any part thereof may not be copied, modified, or used to create derivative works without prior written consent from Licensor.
- b) User shall not distribute, transfer, sublicense, lease, lend, or rent the Database to any third party.
- c) Reverse engineering, decompiling, disassembling, or otherwise attempting to derive the source code of the Database is strictly prohibited, except where such activity is expressly permitted by applicable law.
- d) User shall not use the Database in any manner that infringes upon the intellectual property rights or proprietary rights of any third party.
- e) The Database shall not be used for any illegal or unauthorized purposes.

3. Commercial Use

3.1 The User is strictly prohibited from using the Database for any commercial purposes. Commercial purposes include, but are not limited to:

- a) Proving the efficiency of commercial systems
- b) Testing commercial systems
- c) Using screenshots of subjects from the Database in advertisements
- d) Selling data from the Database

4. Responsibility

4.1 The signee of this Agreement must hold a permanent position at an academic or publicly funded research institute.

4.2 Up to five other researchers affiliated with the same institute, for whom the signee is responsible, may be named at the end of this document, which will allow them to work with this dataset. All of the researchers need to sign this document.

5. Distribution

5.1 The User may not distribute the Database in any way.

5.2 Small portions (screenshots) may be distributed in publications as long as the publication complies with the terms stated in this EULA.

5.3 The User will forward all requests for copies of the Database to the Database Administrators Dr. Siyang Song at s.song@exeter.ac.uk.

6. Access

6.1 The User may only use the Database after this EULA has been signed and returned to the Database administrators.

6.2 The User must create an account and return the signed EULA by sending this form in PDF format to the email address provided in this Agreement.

6.3 Multiple users may sign one EULA to grant access to a group of researchers. Each researcher, however, must register with an individual username and password and upload a copy of the signed EULA.

6.4 The User may not grant anyone access to the Database by giving out their username and password.

7. Publications

7.1 Publications include papers, presentations for conferences, or educational purposes.

7.2 The User may use screenshots of subjects in publications only if that particular subject has explicitly granted permission to use his or her recordings in publications.

7.3 The Database specifies whether a user has given consent to use their imagery for dissemination in publications and presentations.

7.4 All documents and papers that report on research using the Database will acknowledge this as follows: "(Portions of) the research in this paper use the MARS dataset collected for the Multiple Appropriate Human Reaction Generation in Dyadic Interaction project [1]", or similar language, where [1,2] are references to the relevant publication.

[1] Song et al. "REACT 2025: The Third Multiple Appropriate Facial Reaction Generation Challenge." In Proceedings of the 31st ACM International Conference on Multimedia, 2025.

[2] Song et al. "Multiple appropriate facial reaction generation in dyadic interaction settings: What, why and how?." arXiv preprint arXiv:2302.06514 (2023).

8. Research

8.1 The User may only use the Database for scientific research, teaching, and/or classroom use.

8.2 Any models derived using data from the dataset may only be used for scientific, non-commercial applications.

8.3 The Database specifies whether a user has given consent to use their data for research purposes outside of the initial consortium or project.

9. Changes

9.1 The Licensor reserves the right to modify or amend this Agreement at any time.

9.2 Users will be informed about changes beforehand and given the choice to opt-out of the new Agreement. Opting out will render the previous Agreement void.

10. Disclaimer of Warranties

10.1 THE DATABASE IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT ANY WARRANTIES OF ANY KIND.

10.2 LICENSOR EXPRESSLY DISCLAIMS ALL WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

11. Limitation of Liability

11.1 IN NO EVENT SHALL LICENSOR BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOSS OF PROFITS, REVENUES, DATA, USE, GOODWILL, OR OTHER INTANGIBLE LOSSES, ARISING OUT OF OR IN CONNECTION WITH:

- a) USER'S ACCESS TO OR USE OF OR INABILITY TO ACCESS OR USE THE DATABASE;
- b) ANY UNAUTHORIZED ACCESS TO OR USE OF LICENSOR'S SERVERS OR ANY PERSONAL DATA STORED THEREIN;

- c) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE DATABASE;
- d) ANY BUGS, VIRUSES, TROJAN HORSES, OR OTHER HARMFUL CODE TRANSMITTED THROUGH THE DATABASE BY ANY THIRD PARTY;
- e) ANY ERRORS OR OMISSIONS IN ANY CONTENT OR FOR ANY LOSS OR DAMAGE INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, EMAILED, TRANSMITTED, OR OTHERWISE MADE AVAILABLE THROUGH THE DATABASE.

12. Indemnification

12.1 User agrees to indemnify, defend, and hold harmless Licensor, its affiliates, officers, agents, and employees from any claims, demands, damages, liabilities, losses, costs, or expenses, including reasonable attorneys' fees, arising out of or related to User's use of the Database, violation of this Agreement, or infringement of any third party rights.

13. Termination

13.1 Licensor reserves the right to terminate this Agreement immediately if User breaches any term of this Agreement.

13.2 Upon termination, User must cease all use of the Database and destroy any copies of the Database in User's possession.

14. Governing Law

14.1 This Agreement shall be governed by and construed in accordance with the laws of England and Wales, without regard to its conflict of law principles.

15. Entire Agreement

15.1 This Agreement constitutes the entire agreement between User and Licensor with respect to the use of the Database and supersedes all prior or contemporaneous understandings and agreements, whether written or oral.

16. Contact Information

16.1 For any questions regarding this Agreement, please contact Licensor at:

AI Human Behaviour Understanding and Generation (HBUG) Lab, University of Exeter

Stocker Rd, Exeter, EX4 4PY

s.song@exeter.ac.uk

Signatures: I declare that I hold a permanent position at an academic/publicly funded research institute, have read and understood the user agreement, and will comply with it.

Signature: _____

Please print name: _____

Email: _____

Personal Institutional Webpage: _____

Please provide names and signatures of additional researchers you are responsible for and who will use the database on your behalf:

Additional Researcher 1: _____

Additional Researcher 2: _____

Additional Researcher 3: _____

Additional Researcher 4: _____

Additional Researcher 5: _____

Institution: _____

Date: _____